

Stability of Transactions in the Customized-painting Market: Online Contracts with Minors

In April 2021, Fufu (pseudonym), a 13-year-old girl, was found having paid 700,000 yuan for customized paintings within half a year. The highest expenditure on a single painting reached 70,000 yuan (Zhu, 2021). Fufu's mother contacted the painter of this painting and requested a refund on the ground that Fufu was a minor, and the dispute ended with the painter's refunding of 60,000 yuan (Zhu, 2021). In this case, it is believed that since the 13-year-old girl was a person with limited capacity for civil conduct, and paying 70,000 yuan for a painting not only failed to "purely benefit the person" but also failed to be "commensurate with [...] her age, [and] intelligence" under normal circumstances as Article 144 of the Civil Code of the people's Republic of China (Civil Code) stipulated. Therefore, the transaction was considered invalid and set aside.¹

Nevertheless, this case became complicated after more information of Fufu was disclosed. According to the interview, Fufu claimed that she was already 18, throughout the negotiation and the transaction, and Fufu's mother once said that if the painter refused to refund, she could spend 7,000,000 yuan to destroy the customized-painting community (Urgency Call, 2021); in fact, according to other lovers of customized paintings, for a long time before this case, there had been many incidents of underage consumers' fraud (disappearing without paying after receiving paintings, refusing to pay the painting and threatening the painters into accepting this by resorting to the underage status) in this community (Song, 2021). These later-added information triggered heated discussions on how to ensure the stability of transactions for those bona fide painters.

Against these backgrounds, this study first discusses the dilemma of balancing the interests of the minors and that of the painters by referring to the existing legal framework. Further, given the insufficiency of statutory protection, this study illustrates how court decisions have developed a set of judicial standards to

¹ Civil Code of the People's Republic of China, Art. 145.

complement the gap in practice, and, to what degree these standards can help construct a framework to determine the validity of the contracts concluded by minors. This article also reviews different scholarly opinions and examines other jurisdictions' established regulations to shed light on how to improve existing law as concerns minors' contracts.

The existing legal framework and effectiveness of civil acts of minors

Articles 17, 18, 19, and 20 of the Civil Code mainly take age as the criterion and divide natural persons' capacity for civil conduct into three levels—no civil capacity, limited civil capacity, and full civil capacity. In general, a natural person under the age of eighteen is a minor, who will be recognized as a person with incomplete civil capacity.² Articles 144 and 145 of the Civil Code stipulate the scope of the effectiveness of the civil acts conducted by minors.^{3,4} As minors are considered unable to adequately recognize the potential risks as a consequence of their civil acts, these two articles invite the minors' statutory agents to intervene with the minors' civil acts and safeguard the minors' interests (Wang, 2018).

Nevertheless, in the digital era where e-commerce and electronic contracts can be seen everywhere, the existing legal provisions of minors' civil capacity may cause unreasonableness in daily lives. For example, many children under 8 now use smartwatches to scan transportation QR codes when taking the bus. However, even if the legal representatives are willing to ratify such business, the actions would still be deemed legally invalid (Fei et al., 2023). For minors who are under 18 but above 8, opportunities for them to access online transactions are also greatly increased, as their "basic skills in online information retrieval is constantly improving" (Department for Safeguarding Youth Rights and Interests of Central Committee of the Communist

² According to Art. 18, para. 2 of the Civil Code, "[a] minor attaining the age of sixteen and primarily relying on his or her own labor income in living is deemed a person with full capacity for civil conduct."

³ Art. 144 of the Civil Code provides that "[a] juridical act performed by a person without capacity for civil conduct shall be void."

⁴ Art. 145, para. 1 of the Civil Code provides that "[a] juridical act performed by a person with limited capacity for civil conduct shall be valid if the act purely benefits the person or is commensurate with his or her age, intelligence, and mental health; and any other juridical acts performed by the person may become valid after they are consented to or ratified by his or her statutory agent."

Youth League of China & China Internet Network Information Center, 2023). Moreover, compared to minors without capacity for civil acts, the minors with limited civil capacity, aged between 8 to 18, have mastered certain knowledge to independently select entertainment and cultural consumption services.

Besides the above situation, existing law should reconsider whether the current contract law leaves a loophole for the abuse of the status of minors. An example is that some minors use their parents' ID numbers to pass the minor verification mechanisms, reach agreements with online game providers in form, and conduct in-game purchasing. The parents of the minors usually claim refunds in the name of their child's minor status. Although the protection for "bona fide opposite parties" is stipulated in current Civil Code to maintain the stability of contractual behaviors, however, in term of the protection strength, it is not equivalent to the protection for minors.⁵ As Wang (2018) argued, "[f]rom the perspective of the purpose of the capacity to act system, it aims to protect minors [...] who cannot recognize their behavior, but not the bona fide counter-party." The traditional system of civil capacity presumes the immaturity of minors and therefore gives minors extra protection. Deng (2024) pointed out if this presumption is still applied in the case of contracts as a result of minors' fraudulent behavior, involving high expenditures, bona fide counter-parties will face great unpredictability—the contract will be invalid as long as the statutory agents refuse to ratify.

Under these circumstances, coupled with the difficulty in verifying the identification of the service purchaser brought by online transactions, the interest of the bona fide counter-party is hard to balance, especially in the customized-painting market, for the following reasons.

First, whether a minor contract is valid depends on whether the civil act performed by the minor is commensurate with their age, and intelligence. Unfortunately, existing law does not provide clear definitions or operational guidelines on this matter, which introduces uncertainty of the minor contract, and, due

⁵ Civil Code of the People's Republic of China, Art. 61, 65, 85, 94, 145, 170, 171, 225, 335, 341, 174, 403.

to the non-transparent status of the contracting party in online contracts, the bona fide counter-party even could be unaware that the legitimacy of the contract is in question.

The customized-painting discussed in this study differentiates from presses' commissioned artwork contracts, with mature and discreet clauses. Instead, as a consumer hot-spot motivated by cyberculture such as cyber literature and anime, the subject of customized-painting is generally cartoon-styled virtual characters, and the contracts are characterized by strong digital nature. From the conclusion of the contract to the service and the delivery of the subject matter, all the procedures can be supported by the digital platform. This results in obstacles for bona fide counter-party to verify the contractual party's identity. The obstacles are not only about identification deception, but also about concern on privacy disclosure and dissemination. The latter consideration directly leads to the dilemma of valid identity recognition, particularly when the contract is concluded between parties privately, without any support of an identity verification system of customized-painting intermediate platforms.

Second, if the minor's civil act fails to align with their age and intelligence, the contract requires the ratification of statutory agents (usually parents) to become valid. This means that the validity of the contract entirely depends on the parents' personal decisions, rather than the willingness of the person who persuades the bona fide counter-party into entering the contract. Moreover, based on parents' advantageous right to ratify, since parents' intentions and children's often conflict, the bona fide counter-party's interests are further undermined. Even though the parents may authorize the contract afterwards, the bona fide counter-party has to bear the risk of potential contract invalidity until the contract receives ratification, which impairs the confidence in contract performance.

The second paragraph of Article 145 of the Civil Code stipulates that "a bona fide counter-party shall be entitled to revoke the act" before the ratification of a minor's civil act. Accordingly, in the case of customized services, the bona fide counter-party's interest will suffer losses, more or less, unless ratification is made before the customization has not commenced at all. This rationale lies in Article 157

of the Civil Code, which limits the compensation for the bona fide party within the scale of restitution.⁶ The unratified minor contract will be void and the minor shall return the property obtained to the bona fide counter-party as restitution. Nonetheless, customized products, due to their highly personal preferences, are hardly to resell. Although Article 157 provides that “if restitution is impossible or unnecessary, indemnification shall be made at an estimated price”, the bona fide painters have difficulty in receiving fair compensations since the value of artworks is hard to estimated. What is worse, if the negative ratification to the minor contract is made during the creation of artworks, the subject painting will be a semiproduct, which is considered valueless. As a result, the bona fide painter has to suffer greater losses.

To summarize, it appears that the Civil Code does not set clear legal provisions on the criteria for deciding minors’ (above 8-year-old but under 18) behavior commensurate with their age and intelligence, resulting in the instability of contracts with minors (Deng, 2024). Article 148 makes little contribution to punishing minors’ contractual deception because, only if the contract is commensurate with the minor’s intelligence or ratified can this article be applied, where the contracting parties are usually satisfied so they do not litigate. Article 157, despite offering the bona fide counter-parties the right to revoke, fails to provide them with practical monetary remedies to indemnify their labor investments in customized service.

Analysis of the legal frameworks concerning minors’ contract from other jurisdictions

To complement the loopholes of the abuse of minors’ status in contract law and balance the bona fide counter-parties’ benefits, scholars have reviewed different jurisdictions’ laws and made their recommendations. First, they have tried to treat minors as those who have full civil capacity by arguing for the cognitive maturity embedded in minors’ fraud and thereof exempting the particular judicial protection of them, so the minor and the bona fide counter-party are civil subjects with balanced status (Li, 2009; Shi, 2021; Deng, 2024). Second, they have sought support from

⁶ Civil Code of the People’s Republic of China, Art. 157.

statutory agents' implied consent to validate minors' civil acts (Zheng, 2013; Deng, 2024).

Minors' contract fraud and the system of presumption of behavioral capacity

In common law jurisdictions, for example, the United States, precedents hold that if a minor falsely reports their age to be an adult, the other party can claim damages or even restitution for the minor's tort rather than breach of contract (Li, 2009). Although restitution is still deemed as the most powerful remedy, the argument based on the tort issue to include monetary remedy is actually beneficial for the counter-parties in customized painting contracts. However, the traditional rule of common law stipulated that generally under the aforementioned circumstance, the contract cannot be enforced against the minor because their physical and mental growth remains incomplete to individually make a contract, and thus they cannot bear the corresponding liabilities arising therefrom; the equitable relief of minors contracts is usually limited to the return of unjust gains that the minor obtains from the counter-party (Li, 2009). Besides the limitation of the remedy under this topic, given China's civil law tradition and the absence of equity law, the remedial approach taken by the common law legal system for minors' contracts provides a weak legal reference value for China.

In Deng's (2024) and Shi's (2021) research, the stance of civil law of Japan,⁷ Korea,⁸ and the Taiwan region⁹ on minor's capacity to form contracts was supported—when a person with limited capacity adopts fraudulent means to induce others that he or she is a person with full civil capacity or has obtained their guardian's consent to act, the act shall not be rescinded. All these three jurisdictions prioritize transaction security and the interests of counter-parties. Taking the Taiwan region as the example to analyze the measures in details, according to the interpretation of Article 83 of the Civil Code of the Taiwan region (Ministry of Justice of Taiwan, 2025) and the case of *Longyi Co., Ltd. v R.*,¹⁰ a minor who deceived the

⁷ Civil Code of Japan, Art. 21.

⁸ Civil Code of the Republic of Korea, Art. 17.

⁹ Civil Code of the Taiwan region, Art. 83.

¹⁰ [2022] TDC 74, para. 26.

counterparty into believing they possessed full legal capacity forfeited judicial protection, in that their successful fraud demonstrated a level of cognitive maturity exceeding that expected at their actual age, thereby failing the application of the theory of presumptive immaturity. Moreover, Taiwan adopts an even broader definition of minors' fraudulent acts to safeguard bona fide parties. As in the case of *Zheng v Singapore Shangjingwu E-Sports Co., Ltd. Taiwan Branch*, the court held that the so-called "fraud" should be explained from a broad perspective, not limited to active fraudulent strategies, that is, "those who falsely claim to be of age, married, or have obtained the permission of a legal representative, causing the counter-party to make mistakes," but also including silent ones—"do not clarify the counter-party's misunderstanding, to deploy their negligence to cause or reinforce their misbelief, are all included."¹¹

The restrictive regulations in various countries and regions on the contracting capacity of minors aim to protect the legitimate rights and interests of minors, but not to offer them the privilege of defrauding others (Li, 2019). It should be conceded that the consideration of the relevance between fraudulent acts and minors' cognitive maturity has referenceable value, but the value is for judicial reasoning rather than legislative change. In fact, it is radical to use Article 83 of the Civil Code of the Taiwan region for reference to hastily add an identical statute because essentially it seems to challenge the foundation on which the Civil Code of the PRC is based to give legislative protection for minors performing civil acts. In addition, in the mainland China, the case of *R (Cheng) v Shanghai ** Company*, in which the minor Cheng from an ordinary family had spent over 210,000 yuan in the game, pointed out that if a minor entered a contract with a large-scale platform by concealing the actual age, the platform—though legally recognized as a bona fide party—could leverage its extensive experience and lawyer resources in handling such disputes, which rendered difficulties for the minor and her family to uphold their interests.¹² Coupled with the

¹¹ [2022] TDC 151, para. 8.

¹² [2023] SPP 174, para. 11. In this case, the minor plaintiff had registered a game account with false age information and recharged money into a game by using his parent's banking amount. The court decided that the minor's contract shall be valid and the subject amount of 33,200 Taiwanese dollar shall not be returned.

constraints of this statutory provision, the judicial process will inevitably lack judicial care.

Legislating that minors' fraud can validate contracts signed with minors can introduce more legal controversy. Thus, out of the considerations about prudential legislation and the objective to minimize disputes, it is more suitable to put minors' fraud aside from deciding the validity of the contracts. In other words, the court shall determine the validity of the contract first. Only after determining the contracts' effectiveness, the court can then move on to deploy minors' fraud as a decisive factor in increasing the fault liability of the minor's side. In this way, the minors have to leave more money for the bona fide counter-parties as compensation for their fraudulent behaviors.

Although agreeing with the above law design on minors' contract fraud, Shi criticized that regions like Taiwan and Korea insufficiently provided the dispositions about minors' contract fraud (Shi, 2021). Shi's legislative recommendations contended that the counter-party might revoke the contract at will when minors give simple statements of being an adult to commit illegal acts such as entering bars and buying cigarettes or alcohol; faced with minors' falsifying proof materials, in the light of the hard-to-verify features of the information in the online contract, the standard for determining minors' contract fraud should be lowered, as the Taiwan region does, and the counter-party should have the right to decide whether to revoke instead of inviting the legal representative to decide the effectiveness of the contract (Shi, 2021). Admittedly, Shi's comments place more care on the bona fide counter-party, yet the problem is the undue emphasis on the right of revocation. For one thing, under the first circumstance of minors' simple statement of false age to perform illegal conduct, establishing a new statute may lead to overlaps between itself and Article 143 of the Civil Code¹³ and the Law on the Protection of Minors¹⁴. For another thing, in

¹³ Civil Code of the People's Republic of China, Art. 143, item 3, "(3) It neither violates the imperative provisions of laws and administrative regulations, nor is contrary to public order and good morals."

¹⁴ Law of the People's Republic of China on the Protection of Minors, Art. 58 provides, that "[o]perators of commercial singing and dancing entertainment places, bars, business premises for Internet access services, and other sites inappropriate for minors shall not allow minors to enter [...];" Art. 59 provides, that "[i]t is prohibited to sell cigarettes, alcohol, and lottery tickets to minors, or redeem lottery prizes for minors."

customized-painting contracts, revocation can fail to compensate for the painter's reliance losses: time and labor.

Statutory agents' implied consent

As mentioned before, Article 145 exhibits the deep participation of a statutory agent's subsequent ratification in validating a minor's contract. However, the Civil Code does not discuss much about situations where statutory agents' actions can constitute prior consent to the minors' subsequent civil acts. In other civil law jurisdictions, such as Germany and Japan, "pin money provisions" are adopted to show a possibility of dealing with the effectiveness determination of the contracts with minors (Zheng, 2013). Section 110 of the German Civil Code¹⁵ together with Article 5 of the Civil Code of Japan¹⁶ are legislated based on the logic that minors' acquisition of pin money has attained an implied consent from the statutory agents (Zheng, 2013).

Zheng (2013) argued that according to the German provision, no matter whether a minor has performed contractual obligations by using funds provided by their statutory agents to specifically fulfill the said contract, or, to support the minor's free disposal, the contract shall be viewed valid even without the statutory agent's explicit consent. The Japanese pin money provisions more explicitly stipulate minors' civil capacity to contract by means of pin money if their statutory agents set restrictions over the money's usage: Within the defined purpose, minors may freely dispose of such funds; without predefined usage restrictions, minors may freely dispose of the funds. These provisions are referenceable for China to improve the current law for several reasons. First, it mitigates the rigid application of the leveled civil capacity system based on the age division, recognizing minors' certain judgment to make choices and enter transactions and confirming that minors should be liable for

¹⁵ German Civil Code, Sec. 110, stipulates that "[a] contract concluded by the minor without the approval of the legal representative is deemed effective from the outset if the minor effects performance under the contract with means that were made available to the minor for this purpose or for the minor's free disposition by the legal representative or by a third party with the representative's approval."

¹⁶ Civil Code of Japan, Art. 5 stipulates that "[...] a minor may freely dispose of property that the legal representative has permitted the minor to dispose of for a specified purpose, to an extent that falls within the scope of that purpose. The same applies if the minor disposes of property that the legal representative has permitted the minor to dispose of without specifying a purpose."

corresponding contractual obligations (Zheng, 2013). Second, it limits parental participation in minors' civil activities within an appropriate scope. Once the action—providing pin money for the minor—is made by the statutory agent, the agents should have anticipated that spending this part of the money, in any form, even used up, will not threaten the family economy. Given that giving pin money itself is already an action done under consideration, agreeing with the minors' various forms of disposals of the pin money, there is no reasonableness left for the agents to jump out after the minors make high expenditures, declaring that they do not ratify the minors' transactions.

Third and finally, if legislators do not want to make a big step, adding a “pin money article” to the Civil Code, then taking it into judicial reasoning can be a moderate alternative. The amount of the pin money can reflect a family's financial strength. A minor who receives a large amount of pin money can understand that his or her family's affluent finance allows his or her high consumption. Therefore, when applying Article 145 to decide the validity of minors' contracts, the court is recommended to check the sources of funds. If the contract considerations are fulfilled by the minors' pin money, the court should first compare the amount of pin money and the price of the subject matter and then decide whether the said transaction goes beyond the minor's cognition.

Judicial practices regarding minors' civil disputes about electronic business

So far a number of minor contractual disputes have occurred in the market of customized-painting, but none of them has been brought to court. This study selects existing judgments related to cases involving minors' in-game purchases, recharges for comics reading, and live-streaming gifts instead. The transacted objects of the electronic contracts in these cases are all cultural and entertainment consumption, representing highly resemblance to that of customized-painting contracts. It is valuable to review these similar cases, to cast light on how to improve the current judicial practices to balance the bona fide painters' welfare against the minors' in the customized-painting field.

R (Tang) v Guangzhou Anyue Network Technology Co., Ltd.¹⁷

Tang, as an 11-year-old girl, entered an electronic contract with the comic reading platform called Qire Comics (mobile WAP) by using her father's WeChat account. From the age of 11 to 13, she recharged 1,466 yuan into the comic reading account within a year and a half. The statutory agents of Tang sued the company to retrieve Tang's consumption.

The Beijing Internet Court held that despite Tang's limited civil capacity, she should be capable of understanding the contract asking users to charge token money or membership in exchange for the comic reading service. Simultaneously, separating the total expense into single payments to consider, Tang made 25 expenditures, each amount ranging from 18 to 100 yuan. Given that Tang's family economic situation, daily consumption level and habits, and the economic development level of their habitual residence in Haidian, Beijing, both the single payment and the total consumption involved in the case are considered reasonable to fall within Tang's capacity to manage. The court finally decided that, on the issue of determining the civil capacity of minors, the comic reading recharge of 1,466 yuan was a civil activity that the minor contractor's age and intelligence could understand and support. Therefore, according to Article 145 of the Civil Code, the contract was deemed valid without the need of statutory agents' ratification.

The judgment of Tang's case offers a comprehensive series of perspectives to check the rationality of the minor's civil acts. Solely evaluating the total consumption may be inadequate, because firstly the plaintiff's consuming behaviors are not temporary but continuous, occurring many times, which means that a large total can be a consequence of cumulative reasonable single payments in a certain long-term. Secondly, income and consumption levels vary greatly in different regions (for example, Shanghai compared to Yunnan), so the local economic development level and peers' consumption level are needed to tell whether the total payment of 1,466 yuan falls an unreasonable payment out of the specific minor's control. It is helpful to take the family's economic situation and individual daily consumption level and

¹⁷ [2021] BIC 16731.

habits into consideration, to ensure whether a minor's cultural and entertainment investment deviates too far from normal civil acts to be appropriate.

The interest of the bona fide counter-party is possible to be better guaranteed under a comprehensive framework of multiple dimensional standards. Specifically, in Tang's case, the separated payments proving that each recharge varies between 18 to hundred yuan make the argument for the validity of the minor's civil act more convincing, enhancing the possibility of validating the minor contract. Nevertheless, the method of dividing a total amount into single payments is not widespread adopted in the determination of the validity of minor contracts.

R (Li) v R (Network Technology Co., Ltd.)¹⁸

Li was a minor aged 13 who, without the consent of his statutory agents, used adults' mobile phones to pass the age verification and access the full service of the platform; later he used adults' payment accounts to recharge and tip on the Huisen Livestreaming platform, totaling 28,000 yuan within half a month. When the plaintiff's mother discovered Li's recharging and tipping, she pursued refunds from the Huisen platform but failed. The contract between the minor and the defendant company was declared invalid by the court. Firstly, Li's legal representatives did not ratify the actions that He had performed; secondly, the short duration of the recharge and consumption together with the large amount of the expenditures did not constitute civil legal acts appropriate to the age, intelligence, and mental health of a person with limited civil capacity. Therefore, the online service contract between the defendant company and him was deemed invalid and Li's refunding request was supported.

The judgment of Li's case when deciding on the issue of the effectiveness of the minor contract did not bring the recharge times and the single amount of each recharge into legal reasoning. The critical factors of the determination were the total consumption and the consumption frequency of the minor involved. The examination of each single payment's amount, instead, served to calculate the amount of restitution that the defendant companies shall return to the plaintiffs as required by Article 157.¹⁹

¹⁸ [2024] BIC 4708.

¹⁹ Civil Code of the People's Republic of China, Art. 157.

The court opined that the consumption involved in the case could not be fully returned, in that 1) the parents of the minor failed to fulfill the responsibility of statutory agents for supervising the minor's acts, 2) neglected to safeguard the passwords of the payment accounts, and, additionally, 3) did not notice abnormally large expenditures. The third argument was based on the calculation of single payments. The judgment said, "the account involved in the case has made over a hundred recharges, with the highest single transaction reaching 1,298 yuan, [...]." It could be deduced that separately checking each payment aimed to find the highest single amount to justify the abnormality of the minor's consumption, rather than analyzing whether the most expenditures were reasonable. The detailed data on the single payment amounts of the lowest expenditure and other recharges, together with the frequency distribution of these non-highest recharges, though provided by the defendant, were not mentioned in the judgment, which could be perceived that they were neither the focus in the section on determining the validity of the minors' civil acts, nor pivotal contributions to dividing the fault liability.

Nevertheless, this judicial reasoning mindset could be biased. The sum of recharges was the combination of small- and medium-value disbursements and high-value expenditures. Assuming,

Total small consumption = Single low-value expense $\times$ recharge times, and

Total high consumption = Single high-value expense $\times$ recharge times.

When the total small consumption is equivalent to the total high consumption, the recharging times of small payments will be far more than that of high payments—just as when a person spends the same money on buying apples and buying mangosteen, the number of apples must be bigger than the number of mangosteen because the unit price of the latter is more expensive than that of the former. This points out that even though small-value and medium-value recharges take a dominant position in recharging frequency so that they can represent a consuming habit of the minor, the judgment may still favor the minor. This is because the high-value payments with low frequency result in an abnormal amount of expenditures, and these high-value payments are usually ascribed to minors' immaturity, representing an overall delusion

that the total transactions are made due to immaturity. It is biased to select the highest single payment alone to stand for a minor's consumption pattern and correspondingly declare the whole contract invalid. At least, each low expenditure of the contract can be commensurate with the minor's age.

Through case research, the judgments pertaining to the determination of the effectiveness of minors' online contracts can be categorized into two types. The first addresses the validity issue directly by examining whether the act is commensurate with the minor's age and intelligence, which is from the end of minors. So far, the analysis of the first category has been accomplished. The second category seeks solutions from the end of the statutory agent, centering on under what conditions the agent's behaviors may constitute ratification of the minor's act and validate the contract. In the following section, the second category is the subject to be elaborated.

R (Zheng) v Beijing Milaiwu Network Technology Co., Ltd.²⁰

The case of Zheng is an exemplar to delineate how a minor contract is validated through ratification in acquiescence.

The underage plaintiff Zheng, 15 year-old, registered a "Yingke" live-streaming account by using her legal representative's WeChat and Alipay accounts and spent 657,734 yuan on tipping live-streamers.²¹ The consumption of Zheng can be divided into three stages to analyze.

Stage 1: In 2016, from February 7 to April 5, Zheng recharged around 380,000 yuan into her Yingke account.

Stage 2: From April 5, until May 26, Zheng's mother, Liu, perceived Zheng's abnormal transactions and took action to restrict her daughter from recharging. However, Zheng still spent about 87,000 yuan on life-streaming tipping.

Stage 3: On May 26, 2016, Liu sent an attorney's letter to Milaiwu Company to request refunds based on the claim of her daughter's minor status. From May 26, 2016,

²⁰ [2018] BTIPC 539.

²¹ Among the amount of around 650,000 yuan that Zheng claimed, 130,000 thereof was deposited into the Yingke Platform by a third party, and Zheng failed to provide evidence proving that such funds were actually transferred to the account. The final recognized claimed refund was 524,509 yuan.

to April 1, 2017, Zheng made several recharges into Yingke, in the sum of 49,120 yuan.

The court, when analyzing the first stage, paid attention to Zheng's massive expenditures—spending over 380,000 yuan within two months, with single-day spending reaching over 50,000 yuan. These amounts far exceeded the normal consumption level of a minor without independent income resources, but the court did not simply ascribe Zheng's payments to impulsive consumption not commensurate with a minor's age and intelligence and thereby void the minor contract. On the contrary, the court of second instance ascertained the ruling of the court of first instance, Liu's permissive attitude toward Zheng's large online transactions during this period constituted a silent ratification of Zheng's contract with Milaiwu Company. This part of the judgment was based on the fact that Liu did not place sufficient care on her minor child, nor did she fulfill the duty of an account manager to prudently guard over her personal banking passwords and finances, which actually indulged Zheng in engaging in uncontrolled, multiple, continuous, unreasonable online spending.

As concerns the second stage, the court agreed that Liu's control of her payment accounts to restrict Zheng's recharge represented a statutory agent's refusal to ratify the minor contract, but the court also emphasized the digital feature of the contract in question. Considering that the contract was established through mutual online verification, invalidating the contract required Liu to at least proactively inform Milaiwu Company of Zheng's minor status, or, her repudiation of Zheng's civil act. In fact, Liu failed to send any notification to the counter-party, resulting in Zheng's continued recharges. Thus, the court held that the recharging contract in the second stage was not fair to be voided.

In the case of the third stage, because Liu sent an attorney's letter to Milaiwu Company to dissenting Zheng's consumption due to her being a minor, the civil acts during this period should be deemed invalid. Milaiwu Company shall refund the disbursements of the third stage to Zheng.

To summarize, Zheng's case reflects that the bona fide counter-party contracting with a minor can avoid losses, where the minor's guardian has done certain misconducts so that the court can decide the statutory agent's ratification to the minor's civil act in acquiescence. This judicial reasoning takes online contracts' electronic feature into account and highlights the care about bona fide parties' disadvantages in verifying the other party's (minors) status, rather starts from the total expenditures and the highest payment amount to make a decision which usually suppresses the bona fide party's interests.

Nevertheless, it should be noticeable that Zheng's case ruled in 2018, though may provide a inspiring direction to balance bona fide parties' benefits against protection for the minors, does not conform to the existing judicial trend, which implies the strengthened protection for minors in civil arena.

In 2020, the Supreme People's Court issued new guiding opinions concerning civil acts. Article 9 thereof provided that where a minor recharges on an online game or a live-streaming platform without the consent of guardians and the payment is not commensurate with the minor's age and intelligence, if "the guardian requests the Internet service provider to return the money, the people's courts shall support such requests" (Circular of the Supreme Peoples Court on the Promulgation of the Guiding Opinions of the Supreme Peoples Court on Several Issues Concerning Properly Handling Civil Cases Related to COVID-19 Epidemic in Accordance with the Law (II), 2020).

Furthermore, Guiding Case No. 174 of the Supreme People's Procuratorate also reflected the judicial tendency towards the protection for minors. The guiding case clearly elaborated that, to adhere to The Law on the Protection of Minors, if "a minor files a civil action due to dispute caused by excessive online consumption [...] and applies to the procuratorial organ [...], the procuratorial organ should uphold the particularities and priority protection of minors and where it is indeed necessary."²² Starting from July 2020, a minor Cheng registered as a user of an online game and social application without the consent of her parents; by February 2021, Cheng had

²² *Id.* at 9, para. 12.

made frequent recharges to tip live-streamers and spent over 217,000 yuan in total.²³ Although Cheng's statutory agents failed to burden the aforementioned three responsibilities that might collaboratively constitute ratification in acquiescence, and it was seven months when they found Cheng's unreasonable expenditures for the first time since Cheng had made the first recharge, far longer than the period that Zheng's mother indulged Zheng to uncontrolled spending, the contract between Cheng and the online game company was still decided to be void.

R (Ren) v R (Beijing ** Technology Co., Ltd.)²⁴

Another factor was once alleged to be the elements of the implied ratification of minors' contracts: pin money. In the case of Ren, a minor aged 17 made recharges totaling 610,414 yuan through an Alipay account in a game operated by a Beijing technology company only within one month. The defendant company contended that the conduct of the minor's mother constituted the acquiescence to ratification of the recharge transactions, because she had previously given substantial pin money to her son, and the minor's engagement in high-value consumption on other platforms had not been restricted.²⁵

The court responded that ratification must be expressly given, and, providing pocket money for minors in terms of living and educational purposes should not be equated with consent to their in-game recharges. The court also emphasized that considering the minor's family financial situation and habitual spending patterns, it was manifest that the recharges of over 610,000 yuan exceeded the scope of capital a minor could dispose of independently.²⁶ Therefore, the service contract concluded by Ren shall be invalid, and it should be restored to the state had it not been contracted. The company should return the recharges whereas Ren should return the company the remaining virtual currency and property, for the part that had been consumed, compensate at a depreciated price.

²³ [2023] SPP 174, para. 8.

²⁴ [2021] BIC 49732.

²⁵ *Id.* at 3-4, para. 7.

²⁶ *Id.* at 4, para. 8.

For one thing, Ren's case reiterates family economic circumstances and consumption habits as critical assessments for the reasonableness of minors' expenditures in analogous judgments. For another thing, this judgment's discussion part of pin money reflects a parental pattern of the legal system protecting minors.

Ren's case reiterates family economic circumstances and consumption habits as critical assessments for the reasonableness of minors' expenditures in analogous judgments. The specific reasoning claiming that giving allowance to minors did not mean consenting minors' recharges reflects a parental pattern of the legal system protecting minors: Minors cannot freely decide how and where to spend the pin money, even if the money without restrictive purposes fully belongs to them. When the spending reaches a level that "can" be viewed as unreasonable, the statutory agents of the minors can file legal actions and the court—as Fei's study has argued—may refer to the statutory agents' opinions to decide the effectiveness of the minor contract, because of minors' doubtful mental state and intelligent. Ren's judgment apparently shows an opposite tendency for the last section's German and Japanese "pin money provisions" which holds that the implied consent has been embedded in the transfer of money to the minors.

In addition, the judgment of Ren's case reported the attributes of pin money to be "for living and education expenses," nominally designating the minor as the spender, yet inherently limiting permissible spending domains. Here reflects a problem rendering some scholars' opposition to introducing "pin money provisions" in China's legal system. Currently, in China, the majority of statutory agents of minors hold entrenched stereotypes against online entertainment activities, so transplanting the German and Japanese "pin money provisions" may cause minors' statutory agents to limit the pin money uses within living or learning (Deng, 2024). As a consequence, the minors will be theoretically prohibited from consuming in certain domains, such as online games, through their pin money (Deng, 2024). Thus, rather than lawfully expanding minors' autonomy to let them make a stable contract with others, Deng argued, "such a rule would assign more control over expenditure decisions to the statutory agents" (2024, p. 23). Furthermore, in online contracts, the bona fide

counter-parties had no means to ascertain whether the minor is using pin money for payment and whether the minor's pin money's usage is unrestricted. Therefore, the imitation of other jurisdictions' pin money provisions can exacerbate the instability of the contracts.

Nevertheless, some counterarguments may contend the judgment of Ren's case failed to consider the feature of electronic contract transactions—the restrictions of Zheng's pin money uses should not be binding on the bona fide counter-party who cannot know the restrictions. On this issue of electronic contracts' feature, the court in *R (Zhang) v. Guangdong Tianchen Network Technology Co., Ltd.* considerably balanced the bona fide counter-party's interests.²⁷ The court held that although Zhang's statutory agent had imposed restrictions on the use of the 20-yuan pin money, such limitations were not known to the company and thereby the restrictions were not binding on the company, so the contract was deemed valid.²⁸ However, it should be notable that before the legal analysis of the pin money, the court primarily decided that the total recharge amount was 20 yuan, fully commensurate with the age and intelligence range of an 11-year-old minor.

Zhang's case, coupled with Ren's case, conveys a pessimistic signal to the bona fide counter-parties. Courts show little attention to the implied consent in the pin money: When the amount involved in the case is large, they resort to pin money's restrictive uses; when the amount is low, they declare the minor's civil act valid though it is conducted through pin money containing the statutory agent's clear disagreement to the minor's act. This flexibility originates from the fact that the judicial reasoning prioritizes the amount involved in minors' online contracts.

To summarize, the interests of bona fide counter-parties are hard to balance if the judicial reasoning continues to hold the total amount of the minors' consumption as the most important criterion to determine the validity of minors' contracts. This study

²⁷ [2023] GDSPPC 9867. In 2022, Zhang, 11-year-old, recharged 20 yuan into a game account through his father's account. Zhang's father demanded a refund from the company the next day. After the negotiation failed, Zhang's father filed a lawsuit to the court. The court found that, the 20 yuan was drawn from Zhang's pin money given by Zhang's statutory agent (20 yuan was not individually transferred to Zhang's account, but stored in his father's account) and the statutory agent had explicitly prohibited Zhang from using this money for game recharges.

²⁸ *Id.* at para. 7.

holds that just as the section *Statutory agents' implied consent* has discussed, the “pin money provision” brings up a view that the practical legal changes or judicial practice can progress toward to develop a multi-dimensional evaluation system, in which the amount of pin money can help reveal a minor's family financial level and therefore decide whether the so-called unreasonable consumption really exceeds the reasonable scope of the specific minor's overall constant consumption as well as consumption cognition. In this way, it is possible to deem the contract between the bona fide counter-party and the minor contractor still valid, if the minor spends a relatively large amount of money on the subject matter, but the statutory agent claims a refund just because of dissatisfaction with the purposes of the pin money's use.

Improving stability of customized-painting contracts with minors

Presently, when bona fide counter-parties contract with minors, believing the opposite contracting parties' full civil capacity based on falsified identity information provided by minors, the instability of minors' online contracts primarily stems from two factors. First, unreasonably high expenditures inevitably invite statutory agents to give ratification, which they typically refuse to grant. In such cases, contracts will not be deemed valid unless courts determine that statutory agents' malpractice in taking care of the minors' civil acts constitutes implied ratification. Second, as there are no documents on reasonable consumption standards for minors to refer to, even if the expenditures do not obviously exceed normal minors' discretion, those contracts which contain subject amounts of ambiguous reasonableness (e.g., 400 RMB) lack validity determination until either parental ratification occurs, or judicial rulings legitimate them. This may discourage bona fide counter-parties from entering into contracts, considering that the status of minors can bring so much uncertainty.

This study believes that, regarding the first problem, introducing a ratification period as a judicial standard could enhance contractual stability while pushing statutory agents to participate more in child supervision. If the denial comes too late, for example, half a year after the minor's civil act, the courts may deem the long-term absence of the agent's attitude as implied consent and validate the minor's contract.

For the second problem, it is feasible to help the bona fide counter-parties to predict whether the subject amount is reasonable by establishing monetary limits for minors' online transactions with reference to the *Notice by the General Administration of Press and Publication of Preventing Minors from Indulging in Online Games* issued by National Press and Publication Administration in 2019. According to this document, minor users are divided into two groups based on their age: the group of minors who are aged between 8 and 16, and the group of those aged between 16 to 18. The former group of minors is allowed to recharge but “the single top-up amount shall not exceed RMB50, and the accumulative top-up amount each month shall not exceed RMB200;” and for the latter group, “the single top-up amount shall not exceed RMB100, and the accumulative top-up amount each month shall not exceed RMB400” (National Press and Publication Administration, 2019). In fact, the customized-painting platform “Mihuashi” has implemented minor expenditure limits since 2021, capping verified minor users at 500 RMB cumulative spending until adulthood.²⁹ This unofficial restriction set by an enterprise effectively mitigates part of the risk of controversial minors' contracts occurring on the Mihuashi platform; it still remains problematic that many minors use their statutory agents' identity to pass the verification and make recharges. To cope with this kind of issues, even without making minors' fraud a trigger to enforce contracts (as in the Taiwan region), considering it to be a contribution to the minor's liability for the contract, increasing the remedial money for the bona fide counter-parties can bolster painters' confidence—even though unfortunately deceived by minors, they would at least get compensation for their efforts to perform the contract as well as their good faith in believing the minors.

However, an exception is to be made. In the customized-painting market, minors' fraud manifests in three categories: 1) falsifying age when making painting commissions; 2) after successful commissioning and artwork delivery, refusing payment by invoking contractual invalidity based on the status of the minor; 3) after

²⁹ See Mihuashi customer service robot. <http://www.sobot.com/chat/pc/index.html>

artwork delivery, impersonating parents to repudiate contracts for refunds. If the second type of fraudulent behavior is committed by a minor, their limited understanding of the Civil Code can reflect their immaturity of mind; if a minor commits the third type of fraud, then this behavior already reflects the minor's full understanding and utilization of the law, revealing their abuse of the minor status for profit and maturity beyond their age. Under these conditions, these minors are ineligible for protection from minors who are immature and unable to bear corresponding responsibilities. Regardless of the size of the subject amount, the customized-painting contract should be considered in line with their mind to enforced.

Secondly, by reviewing the Civil Code and judicial cases, it could be concluded that China does not advocate the implied consent framework in the terms of pin money. Moreover, the Civil Code implements parental-style judicial protection for minors in contracts based on immaturity of the minor's mind; the current judicial reasoning takes the total amount of money involved in the case as the most important factor of the reasonableness of minors' civil acts. However, the minor to carry out a large amount of unreasonable contract is not an excuse to let the bona fide counter-party bear the loss of the void contract. Thus, it is recommended to refer to Tang's case, using the evaluation system of multi-dimensional evaluation of the reasonableness of the minor's expenditure to decide the validity of contracts, particularly speaking, by integrating the level of local economic development, the level of family consumption and habits, and each single payment's reasonableness of the minor's total expenditure, the spending history of the minor, the consumption cognition of the minor, etc.

Back to Fufu's case mentioned in the introduction, it is worth noting that Fufu and the painter's transaction was transferred from the Mihuashi platform to private social accounts. On Mihuashi, Fufu had already passed adult identification. Her user homepage information showed that she was a 31-year-old adult female. Fufu actively contacted the painter ("Painter") to initiate transactions. Painter and Fufu negotiated and agreed to turn the platform transaction into an online private transaction to escape the service fee of Mihuashi. During the private contract negotiation, Painter checked

the Mihuashi account and the Alipay platform account provided by Fufu, and found that Fufu's authentication information was a 31-year-old female, so Painter entered into the contract and performed her obligations (Urgency Call, 2021). It could be seen that Painter, as the bona fide counter-party, exhausted all means to confirm the identity of Fufu to ensure the stability of the transaction. When Fufu's mother asked for a refund, claiming to have queried Fufu's transaction records over the past half year and found that the total expenditure was about 700,000 yuan (afterwards, Painter united with other painters who had dealings with Fufu and came up with the figure of around 252,000 yuan) (Urgency Call, 2021). She wanted to retrieve the spending from Painter first, who concluded the highest-priced contract with Fufu.

Since this issue did not go through any judicial process and came to light on social media platforms, the disclosed information is not sufficient. However, from the information available for discussion, this issue, if brought to court, should not end with Painter returning six-sevenths of the subject amount.

First of all, it needs to be clear that the total amount of Fufu's spending on customized-paintings is the so-called 700,000 yuan, but this is not a contractual transaction for one painter. It needs to be analyzed in individual transactions to determine whether each transaction is reasonable in light of the specific contractual content of each. Second, even with respect to the single contract for 70,000 yuan, it is important to recognize that had Fufu not withheld her age information, the Painter would not have entered into the contract. It is also important to take into account the financial condition of Fufu's family to decide whether 70,000 yuan is an unreasonable amount in this specific case. Considering that Fufu's mother in negotiating a refund with Painter stated that the family has enough financial resources to spend 7 million yuan to oppress this customized-painting community, this study presumes that Fufu's family belongs to an affluent family.

If this matter entered the judicial process, the court could verify the financial strength of the Fufu's family and the economic cognition and spending habits that the Fufu cultivated as a result. If there were many high-leveled expenditures, or if Fufu was cognizant enough to understand the consequences of spending 70,000 yuan on a

painting, then it should be decided that Fufu's spending was commensurate with her mental state and intelligence. Fufu spent a lot in half a year through an Alipay account certified as a 31-year-old woman, which may be assumed to be her mother's account. In the disclosed messages, Fufu's mother did not indicate that the money was Fufu's pocket money, so the probability is that Fufu's payment was tied to her mother's payment account, or, Fufu used her mother's account without any consent to make expenditures for a long time. Therefore, whatever the possibility was, Fufu's mother had to assume the responsibility for improper supervision and failure to keep the password of the payment account. Considering Fufu's misrepresentation of her age, her use of her statutory agent's identity to authenticate through the Mihuashi platform, her frequent successful contracting with painters by reduplicating the above two steps within six months, and the level of her family's finances, it can be sufficient to show that Fufu's customized-painting commissions matched her intelligence and deserved to be deemed as reasonable civil behavior. The subject amount should not be the sole criterion for invalidating her contract with Painter. Moreover, even if the court still considers the expenditure paid for Painter to be an important contract validity determination and finds the civil act unreasonable, it should simultaneously consider the long-term improper behavior of Fufu's mother to be ratification in acquiescence. Or, taking a step back again, that the validity of the contract is denied, Fufu's fraudulent behavior and the her mother's failure to supervision on Fufu together with carelessness about payment account passwords should participate in the liability division section to calculate the amount of the compensation for Painter. This study argues that Fufu should delete all electronic records of the painting, and Painter should not return the entire subject amount. The court should rule on the amount of the total subject amount in proportion to the inputs made by Painter in the performance of the contract, to be left for Painter's monetary remedy.

Apart from the issue of Fufu, the above reasoning can be adopted for all contracts with minors through the customized-painting platform. Of course, it is also necessary to consider customized-painting contracts concluded through both parties' social media accounts privately. When making contracts in social media (such as Rednote,

Tencent) where the users' age does not need to be a real one, due to people's concern that the real identity information leaked to others will be disseminated, both parties to the transaction will not ask the other for presenting official documents for identity authentication, which gives more space to minors to falsify their identities. Therefore, in this case, it is suggested that the painters can require the other party to use Alipay to learn as much as possible about the other party's reliable real identity. However, if there is a subsequent dispute over the validity of the minors' contract, it is conceded that, privately contracting with limited identity verification, the bona fide painters should have foreseen the risk that the other contracting party would be non-identifiable. Thus, in determining the validity of the contract, the minors' age fraud should appropriately weigh less when participating in the determination of the minors' mental maturity or the liability division.

Finally, if pin money is the payment for the minors' contracts, the court should maintain a consistent attitude toward implied consent embedded in pin money: If implied consent is not recognized, the purpose of pin money's uses should not be added to determining the validity of minors' contract, regardless of the subject amount. As for a customized-painting contract paid by pin money, courts can analyze the contract from two aspects. First, if the amount of the customized-painting is large, whether the amount of the minor's pin money and the size of the family's finances are compatible, and whether the minor has sufficient cognition to comprehend the consequences of this transaction. Second, whether the minors conceal the restrictions on the purposes of the pin money's use, and thereby induce the painter into the perception that the minor's statutory agent allows the minor to buy the service through this means. The former helps the court discuss the validity of the minor's contract, and the latter helps identify the extent to which the minor's fraudulent behavior should be involved in the determination of the minor's mental maturity and liability division.

Conclusion

To conclude, this study delved into the disputes of unstable contracts with minors in the market of customized-painting. By reviewing the Civil Code, current judicial cases, and other jurisdictions' law, this study explored the approaches to improvements on the stability of transactions in the customized-painting market from three respective facets. First, the reasonableness determination of the minors' civil acts should be placed under a multi-dimensional framework. Second, the consent of statutory agents should be appropriately adapted, for example, expanding the threshold of acquiescent ratification, to push statutory agents to place more attention to child supervision and protect bona fide painters from continuously suffering the uncertainty of minors' contracts. Third and finally, the minors' fraudulent behaviors deserve serious attention. So far, it is not rare to see minors falsifying their age and identity information to enter a contract. More seriously, there are minors profiting from the abuse of their status as minors, detaching from the objective to which the legal protection was initially set. This study opines that the protection of minors should fall on those minors who are too immature to safeguard their interests. Those minors who conduct fraud should be excluded from judicial protection. In the meantime, these behaviors should increase their liability for the void contract to compensate for bona fide painters' reliance losses on the contract.

When falling into an unreasonable high subject amount of the contracts with minors, the bona fide painters should not always take the disadvantageous position just because the amount involved in the case does not align with the minor's "age." Faced with minors with extra protection, these bona fide painters of good faith deserve justice.

References

- Civil Code of Japan. Ministry of Justice of Japan. (2017).
<https://www.japaneselawtranslation.go.jp/en/laws/view/3494/en>
- Civil Code of the People's Republic of China. National People's Congress. (2021).
<https://www.pkulaw.com/chl/aa00daacb5a4fe4ebdfb.html>
- Civil Code of the Republic of Korea. Ministry of Justice of the Republic of Korea. (2020).
https://www.law.go.kr/LSW/lsInfoP.do?lsiSeq=222427&ancYd=&ancNo=&efYd=20201020&nwJoYnInfo=Y&ancYnChk=0&efGubun=Y&vSct=*&0000
- Civil Code of the Taiwan Region. Ministry of Justice of the Taiwan Region. (2021).
<https://law.chienwen.net/law/%E6%B0%91%E6%B3%95>
- Circular of the Supreme Peoples Court on the Promulgation of the Guiding Opinions of the Supreme Peoples Court on Several Issues Concerning Properly Handling Civil Cases Related to COVID-19 Epidemic in Accordance with the Law (II). (2020). https://www.pkulaw.com/en_law/4633e55fa369f892bdfb.html
- Deng, Y. (2024). Study on the legal issues of minors entering into electronic contracts [Master's thesis, Shandong University of Political Science and Law].
<https://kns.cnki.net/reader/flowpdf?invoice=IDO%2B4on4u7s6uukInAUQY0u%2FZjJ77fOdhwLYJeUlj7NMfEVBn6INYVlgaHsFrBWCBi5e8oQFrFN6qvv2MJGeLJg3oT3JvTP1iPUopPZDL10kKYL%2FimzEmDkLm0QuagHky9zIXW4SuDRQrk%2BHh7I8jZHCLrvQWUKkTxdU0n9Ge%2BY%3D&platform=NZKP T&product=CMFD&filename=1024034804.nh&tablename=cmfd202501&type=DISSERTATION&scope=trial&dflag=pdf&pages=&language=CHS&trial=&nonce=4EB0BACB9BD04369B3E65862F3F35FA7&cflag=pdf>
- Department for Safeguarding Youth Rights and Interests of Central Committee of the Communist Youth League of China, & China Internet Network Information Center. (2023, December). *The 5th national survey on Internet use of minors*. China Youth. <https://qnzz.youth.cn/qckc/202312/P020231223672191910610.pdf>
- Fei, Y., Tong, Z., & Zhao, G., (2023). The problems and recognition of the civil capacity system for minors to enter into electronic contracts. *Journal of Henan*

Radio and Television University, 36(04), 57-61, 112.

https://kns.cnki.net/nzkhtml/xmlRead/trialRead.html?dbCode=CJFD&tableName=CJFDTOTAL&fileName=HNDA202304011&fileSourceType=1&appId=KNS_BASIC_PSMC&invoice=PmhrVt99g6JCVkFM34zWzWqoyhvp+1fUnrek6nSFDfKUErd3HeGI6Hnch33fDbjRU9TyKOMdNc5D1GhO0smcbbTQDs/BIIdAQe3tPZQzZGJJq0V7VX7lReOUGOsZe6REv2LAOQ0HcvPdXoRzQ8T1sJCMpvouz5pzG2pzD2nQ3Q=

German Civil Code. German Federal Parliament. (2017).

https://www.gesetze-im-internet.de/englisch_bgb/

Guiding Case No. 174 of the Supreme People's Procuratorate: Comprehensive Judicial Protection Case of Cyber Civil Interests and Rights of a Minor [2023] SPP 174.

Li, X. (2009). Analysis of the regulation of contract fraud of minors. *Comparative Law Research*, (05), 55-64.

<https://www.pkulaw.com/qikan/bffab85c474acc6d3ac0c3b1a537f06dbdfb.html>

Law of the People's Republic of China on the Protection of Minors. Standing Committee of the National People's Congress. (2024).

https://www.pkulaw.com/en_law/14a412bcd9674b3cbdfb.html

Longyi Co., Ltd. v R. [2022] TDC 74.

Ministry of Justice of Taiwan. (2025, April 11). *The legislative reason of Article 83 of the Civil Code of the Taiwan region.*

<https://mojlaw.moj.gov.tw/LawContentReason.aspx?media=print&LSID=FL001351&LawNo=83>

National Press and Publication Administration. (2019, October). *Notice by the General Administration of Press and Publication of Preventing Minors from Indulging in Online Games.*

https://www.pkulaw.com/en_law/f750f270c60046c7bdfb.html

R (Li) v R (Network Technology Co., Ltd.) [2024] BIC 4708.

*R (Ren) v R (Beijing ** Technology Co., Ltd.)* [2021] BIC 49732.

R (Tang) v Guangzhou Anyue Network Technology Co., Ltd. [2021] BIC 16731.

R (Zhang) v. Guangdong Tianchen Network Technology Co., Ltd. [2023] GDSPPC 9867.

R (Zheng) v Beijing Milaiwu Network Technology Co., Ltd. [2018] BTIPC 539.

Shi, M. (2021). On the basic composition of China's Civil fraud system - Centered on the interpretation of Articles 148 and 149 of the Civil Code of People's Republic of China. *Western Law Review*, (01), 1-13.

https://www.pkulaw.com/qikauthor_qikan/f7b12e0e6ba576fab10c76b79ee20382bdfb.html

Song, Y. (2021, April 13). *13-year-old girl spends 700,000 yuan to buy paintings: Are minors being allured into spending money by the 'circle of characters'?* China News. <https://www.chinanews.com.cn/cul/2021/04-13/9453430.shtml>

Urgency Call. (2021, April 7). *13-year-old girl was revealed to have spent 700,000 yuan to buy paintings* *Insiders: she has some fame in the circle* [Video]. Weibo. https://weibo.com/tv/show/1034:4623463940555003?from=old_pc_videoshow

Wang, H. (2018). Analysis and construction of new rules for the formation of electronic contracts. *Journal of Law*, 39(04), 32-42. https://www.pkulaw.com/qikauthor_qikan/e895bd3633434d8d0294b01db7eb4c03bdfb.html

Zheng v Singapore Shangjingwu E-Sports Co., Ltd. Taiwan Branch [2022] TDC 151.

Zheng, X. (2013). Research on the alleviation path of institutional deficiencies in natural people's capacity for civil acts—Observation and reflection from the perspective of comparative law. *Private Law*, 20(02), 88-116. https://www.pkulaw.com/qikauthor_qikan/9844f391aef2fdf3c1f0ff692b7cb77dbdfb.html

Zhu, X. (2021, April 9). *Behind 13-year-old girl buys paintings for 700,000 yuan: 'Circle of characters' causes chaos and lacks supervision in its transactions.* China News. <https://www.chinanews.com.cn/sh/2021/04-09/9450842.shtml>

Zhu, X. (2021, April 16). *The platform involved responds to "13-year-old girl spends 700,000 yuan to buy paintings": Mechanism is in improvement and the real name authentication is added.* China News.

<https://www.chinanews.com.cn/sh/2021/04-16/9456645.shtml>